

Court No. - 21

Case :- WRIT - C No. - 2472 of 2023

Petitioner :- Smt Saiyyeda Bibi

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd And 2 Others

Counsel for Petitioner :- Mohd Irteqa

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri N.K. Tiwari, learned counsel appearing on behalf of the respondent Electricity Department seeks time to apprise the Court whether the impugned recovery has been withdrawn or not.

List as fresh on 1.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.1.2023

Jaideep/-

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner has challenged the demand notice dated 6.6.2012 issued by respondent no. 2 demanding electricity dues and compounding charges in a case of theft of electricity.

Sri N.K. Tiwari, learned counsel for the respondent Electricity Department states that the recovery has been withdrawn and that fresh order will be passed after affording opportunity of hearing to the petitioner. A letter in this regard by Executive Engineer to the petitioner dated 31.1.2023 has been placed before us for perusal. It has been sent to the petitioner by registered post on 31.1.2023. A copy thereof has been handed over to learned counsel for the petitioner in Court.

Consequently, nothing further survives to be decided in the instant case. The petition is disposed of with liberty to the respondents to pass a fresh order after following the procedure prescribed under the Electricity Supply Code 2005.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

Jaideep/-